

HOUSE BILL 2269

By Hale

AN ACT to amend Tennessee Code Annotated, Title 30;
Section 56-7-206 and Title 62, Chapter 5, relative
to probate.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 30-4-103, is amended by designating the existing language as subsection (a) and adding the following as a new subsection:

(b)

(1) A petitioner or affiant is permitted to proceed pro se if the personal property of the estate consists exclusively of one (1) or more life insurance policies the total of which does not exceed fifteen thousand dollars (\$15,000) in value and that is intended to be used for the decedent's burial, funeral, or final expenses.

(2) A person filing for a small estate affidavit or limited letters of authority is deemed to be acting in an individual capacity to settle a priority debt of the decedent and not in a representative or fiduciary capacity.

(3)

(A) The clerk of the court shall provide a standardized form for filers who meet the criteria of this subsection (b).

(B) Such form meets the criteria for proof of death for small policies, as described in § 56-7-206.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.